

framed and necessary for decision from a clash of adversary argument exploring every aspect of a multifaced situation embracing conflicting and demanding interests." *United States v. Fruehauf*, 365 U. S. 146, 157 (1961). Consequently, the Article III prohibition against advisory opinions reflects the complementary constitutional considerations expressed by the justiciability doctrine: Federal judicial power is limited to those disputes which confine federal courts to a role consistent with a system of separated powers and which are traditionally thought to be capable of resolution through the judicial process.

Additional uncertainty exists in the doctrine of justiciability because that doctrine has become a blend of constitutional requirements and policy considerations. And a policy limitation is "not always clearly distinguished from the constitutional limitation." *Barrows v. Jackson*, 346 U. S. 249, 255 (1953). For example, in his concurring opinion in *Ashwander v. Tennessee Valley Authority*, 297 U. S. 288, 345-348 (1936), Mr. Justice Brandeis listed seven rules developed by this Court "for its own governance" to avoid passing prematurely on constitutional questions. Because the rules operate in "cases confessedly within [the Court's] jurisdiction," *id.*, at 346, they find their source in policy, rather than purely constitutional, considerations. However, several of the cases cited by Mr. Justice Brandeis in illustrating the rules of self-governance articulated purely constitutional grounds for decision. See, *e. g.*, *Massachusetts v. Mellon*, 262 U. S. 447 (1923); *Fairchild v. Hughes*, 258 U. S. 126 (1922); *Chicago & Grand Trunk R. Co. v. Wellman*, 143 U. S. 339 (1892). The "many subtle pressures"<sup>15</sup> which cause policy considerations to blend into the constitutional limitations of Article III make the justiciability doctrine one of uncertain and shifting contours.

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<sup>15</sup> *Poe v. Ullman*, 367 U. S. 497, 508 (1961).